

TERMS & CONDITIONS

CAPITAL CLEARING SOLUTIONS LTD

1. Our Services

Capital Clearing Solutions Ltd provides professional **administrative support and case-management services** in connection with consumer purchases and potential claims, including matters relating to renewable-energy products and associated purchases or finance arrangements.

Depending on the service agreed with you, our work may include:

- Initial claim and case assessment;
- Reviewing information and documentation provided by you;
- Organising and managing case documentation;
- Preparing administrative documentation and reports;
- Preparing letters of complaint and supporting correspondence;
- Assisting with the preparation of submissions;
- Managing incoming and outgoing correspondence;
- Liaising with relevant third parties where authorised;
- Monitoring responses and case progress;
- Providing ongoing administrative and case-management support.

The precise services we provide will depend on your individual circumstances and the service agreement entered into with us.

2. Initial Assessment & Compensation Calculator

Our online Compensation Calculator and any initial assessment are designed to provide an **indicative estimate** based on the information you provide.

The calculator may take into account information such as:

- Products purchased;
- Purchase costs and additional expenditure;
- Multiple purchases or companies;
- Payment methods;
- Credit-card or finance arrangements;
- Representations made during the sale;
- Promised energy savings;
- Actual energy savings achieved;
- Expected income or financial returns;
- FIT rates and payments;
- Government grants or benefits;
- Financial losses; and
- Other circumstances relevant to your purchase.

Any figure produced is an **estimate only**. It is not a guarantee that you have a valid claim, that compensation will be recovered, or that any particular amount will be awarded.

The final outcome of any matter may depend on factors including the evidence available, the individual circumstances, the parties involved and any applicable legal or regulatory processes.

3. No Guaranteed Outcome

We cannot guarantee:

- That a claim will be successful;
- That compensation will be recovered;
- The amount of any compensation;
- How long a third party will take to respond; or
- The final decision made by any company, finance provider, lender, ombudsman, court, regulator or other organisation.

Any estimates, assessments or information provided by us should not be interpreted as a guarantee of a successful outcome.

4. Your Responsibilities

To enable us to provide our services effectively, you agree to provide information that is, to the best of your knowledge:

- Accurate;
- Complete;
- Honest; and
- Not misleading.

You are responsible for providing relevant information and documentation when reasonably requested.

This may include:

- Contracts;
- Invoices;
- Receipts;
- Finance agreements;
- Credit-card information;
- Statements;
- Sales documentation;
- Correspondence;
- FIT information;
- Information regarding grants or benefits; and
- Other evidence relevant to your case.

You must also inform us as soon as reasonably possible if:

- Your contact details change;
- You receive important correspondence relating to your case;
- You discover information previously provided was incorrect; or
- Your circumstances materially change.

Delays in providing necessary information or documentation may affect our ability to progress your case and may affect any applicable service timescales.

5. Documentation & Complaint Preparation

As part of the agreed service, we may assist with the preparation and organisation of professional documentation, complaint letters, correspondence and administrative reports. Documents are prepared based on the information and evidence available to us.

You remain responsible for reviewing information provided to us and notifying us of any inaccuracies or omissions that you become aware of.

We may ask you to review and approve certain documentation before it is submitted or sent.

6. Third-Party Communication

Where appropriate and where you have provided the necessary authority, we may communicate with relevant third parties in connection with the administrative management of your case.

Depending on the circumstances, these may include:

- Suppliers or installers;
- Finance providers;
- Lenders;
- Credit-card providers;
- Administrators or liquidators;
- Complaint-handling bodies; and
- Other organisations relevant to your case.

We cannot control the actions, decisions or response times of third parties.

A delay, refusal or unsuccessful response from one party does not necessarily determine the final position of your case.

7. Authority to Act

Where required, you may be asked to provide written authority allowing us to communicate with relevant organisations or handle agreed administrative matters on your behalf.

Any authority provided will apply only to the activities you have agreed for us to undertake.

You may be required to personally approve or sign certain documents where your signature, confirmation or authority is legally or procedurally required.

8. Section 75, Misrepresentation & Other Potential Routes

Depending on the circumstances of your purchase and the way it was financed or paid for, different routes may potentially be relevant.

For example, circumstances involving a credit agreement or credit-card purchase may require consideration of **Section 75 of the Consumer Credit Act 1974**. Other circumstances may involve representations made during the sale or information that may have influenced your decision to purchase.

The fact that a potential route is identified does **not** guarantee that a claim will succeed.

Any reference on our website, within our calculator or during an initial assessment to Section 75, misrepresentation or any other potential basis for complaint is intended to identify matters that may require further consideration based on the individual circumstances.

9. Our 30-Day Service Commitment

Where your individual service agreement includes our **30-Day Service Commitment**, we aim to deliver the agreed initial administrative package within **30 days of receiving all necessary information and documentation required to begin the agreed work**.

The 30-day period will begin only once we have received the information and documentation reasonably required for us to proceed.

If we are unable to deliver the agreed initial administrative package within this timeframe, and the delay is attributable to us rather than missing information, client delay or circumstances outside our reasonable control, **a full refund minus the initial assessment fee will be provided**, subject to the terms of your individual service agreement.

Our 30-Day Service Commitment applies to the agreed **initial administrative package only**.

It does not guarantee that a complaint, claim or other matter will be resolved within 30 days, as the actions and response times of third parties are outside our control.

10. Circumstances Outside Our Control

We will not be responsible for delays caused by circumstances outside our reasonable control, including:

- Delays by third parties;
- Delays in receiving information or documentation from you;
- Incorrect or incomplete information;
- Delays caused by companies, finance providers or other organisations;
- Technical failures outside our control;
- Changes in law, regulation or procedure;
- Insolvency, liquidation or administration of a relevant company;
- Unavailability of records or evidence; or
- Other unforeseen circumstances that reasonably prevent us from completing the agreed work within the expected timeframe.

Where possible, we will keep you informed of any significant delays affecting your case.

11. Fees & Payment

The fees for our services, including any **initial assessment fee**, will be explained to you before you enter into an individual service agreement.

Your individual agreement will set out:

- The services to be provided;
- Any applicable fees;
- When payment is due;
- Any refund arrangements; and
- Any other relevant payment terms.

Unless expressly agreed otherwise in writing, no compensation amount or outcome is guaranteed in return for any fee paid for our administrative services.

12. Cancellation

If you enter into a contract with us as a consumer at a distance or away from our business premises, you may have statutory cancellation rights, including a **14-day cancellation period**, where applicable.

Where you ask us to begin providing services during any applicable cancellation period, you may be required to pay a reasonable amount for services properly provided before cancellation, where permitted by law and where the relevant requirements have been met. Your statutory rights are not affected by these Terms and Conditions. Any cancellation or refund arrangements specific to your service will also be set out in your individual service agreement.

13. Terminating Our Services

You may request to end our services by contacting us in writing.

Where work has already been carried out, any fees or deductions must be dealt with in accordance with your individual agreement, the work completed and your applicable legal rights.

We may terminate or suspend our services where reasonably necessary, including where:

- You provide information that is materially false or misleading;
- You ask us to undertake an unlawful or inappropriate activity;
- We reasonably believe that continuing the service could place us in breach of legal or regulatory obligations;
- You fail to provide information reasonably necessary for us to perform the agreed service after reasonable requests; or
- Continuing the relationship is not reasonably possible.

Any cancellation or termination terms must remain fair and proportionate; consumer contracts cannot rely on unfair cancellation charges or simply retain payments regardless of the circumstances.

14. Communication

We may communicate with you using the contact details you provide.

You are responsible for ensuring your contact information remains accurate and up to date. Important information may be sent to you by email or other agreed methods of communication.

We may ask you to confirm receipt of important documents or provide instructions before progressing certain stages of your case.

15. Complaints About Our Service

If you are unhappy with our service, we encourage you to contact us as soon as possible so that we have an opportunity to investigate and address your concerns.

We will review complaints relating to our service and respond in accordance with our applicable complaints procedures and legal or regulatory obligations.

Making a complaint does not affect any statutory rights you may have.

16. Privacy & Data Protection

We take the protection of your personal information seriously.

By using our services, you acknowledge that we may process personal information and documentation provided by you for purposes including:

- Assessing your circumstances;
- Providing agreed administrative services;
- Managing your case;

- Preparing documentation and correspondence;
- Communicating with relevant parties where authorised;
- Maintaining business and case records; and
- Meeting applicable legal or regulatory obligations.

Further information about how we collect, use and protect personal information is available in our **Privacy Policy**.

We do not sell your personal information.

17. Confidentiality

Information and documentation provided by you will be treated as confidential, subject to circumstances where disclosure is:

- Necessary to provide the agreed service;
 - Required to communicate with an authorised third party;
 - Required by law or regulation; or
 - Necessary to protect our legal rights or prevent fraud or other unlawful activity.
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18. Our Intellectual Property

Unless otherwise agreed, the content, branding, website materials, administrative templates and other materials created or owned by Capital Clearing Solutions Ltd remain our intellectual property.

Documents prepared specifically as part of your agreed service may be provided to you for their intended purpose, subject to any applicable agreement and payment obligations.

Our website content, branding and materials must not be copied, reproduced or used for commercial purposes without our written permission.

19. Third-Party Websites & Services

Our website may contain links to third-party websites or services.

We are not responsible for:

- The content of third-party websites;
- Their availability;
- Their privacy practices; or
- Any products or services provided by third parties.

You should review the terms and privacy policies of any third-party service you choose to use.

20. No Legal, Financial or Investment Advice

Unless expressly agreed otherwise in writing, Capital Clearing Solutions Ltd provides administrative support and case-management services and does not provide legal, financial or investment advice.

Where a matter requires specialist legal, financial or other professional advice, you may wish to seek independent advice from an appropriately qualified or authorised professional.

Nothing on our website, including the Compensation Calculator, should be treated as legal advice or a guarantee of any particular outcome.

21. Claims Management & Regulatory Matters

The regulatory position of claims-related services can depend on the precise activities being carried out and the type of claim involved.

In the UK, activities including advising on, investigating or representing certain financial-services or financial-product claims can constitute regulated claims-management activity requiring the appropriate FCA permission.

Accordingly, these Terms and Conditions should be read alongside your individual service agreement and any applicable regulatory disclosures relating to the specific service provided.

Nothing in these Terms is intended to represent that a particular activity is regulated or authorised unless this has been expressly stated by Capital Clearing Solutions Ltd.

22. Limitation of Responsibility

We will provide our agreed services with reasonable care and skill.

However, we are not responsible for:

- Decisions made by third parties;
- A third party refusing a complaint or claim;
- The insolvency or financial position of another company;
- Delays outside our reasonable control;
- Losses caused by inaccurate or incomplete information supplied by you; or
- Outcomes that we have not guaranteed.

Nothing in these Terms and Conditions excludes or limits any liability that cannot legally be excluded or limited.

23. Changes to These Terms

We may update these Terms and Conditions from time to time to reflect changes to:

- Our services;
- Our business practices;
- Applicable law;
- Regulatory requirements; or
- Other relevant circumstances.

The version applicable to your individual service will normally be the version made available to you when you enter into your agreement, unless a change is required by law or you agree otherwise.

24. Governing Law

These Terms and Conditions are governed by the laws of **England and Wales**.

Nothing in these Terms affects any mandatory consumer rights that may apply to you.

25. Acceptance of These Terms

By using our website, Compensation Calculator or services, you acknowledge that you have had the opportunity to read these Terms and Conditions.

Where you enter into a separate service agreement with us, the terms of that agreement will apply to the specific services you have purchased. If there is any inconsistency between

these website Terms and your individual service agreement, the individual service agreement will take priority in relation to that specific service.
